

Tentative Rulings for Department 501

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Tentative Ruling

Re: ***Hernandez v. State Center Community College District, et al.***
Superior Court Case No. 25CECG00846

Hearing Date: September 1, 2026 (Dept. 501)

Motion: by Defendant to Compel Further Deposition Testimony and
Production of Documents

Tentative Ruling:

To deny Defendant State Center Community College District's motion to compel answers to depositions questions as to questions nos. 9, 10, and 11.

To find the remainder of the motion moot in light of the parties' representations that they reached a resolution prior to the hearing of this motion.

Explanation:

The deposition of Plaintiff Rozanne Hernandez commenced on October 28, 2025. During the course of the deposition several categories of questions were unanswered by plaintiff on advice of counsel and objections were raised with respect to the production of certain categories of documents requested with the notice of deposition. Defendant State Center Community College District ("SCCCD") filed the motion at bench to compel a further response to eleven deposition questions and four categories of documents. During the pendency of the motion the parties continued to meet and confer and plaintiff served further responses to written discovery and submitted to a second day of deposition resolving the disputes raised in this motion with respect to all but three deposition questions.

The three questions at issue pertain to plaintiff's personal relationship with non-party Robert Pimentel. Defendant argues the information relating to the nature of the relationship is relevant as a potential alternative cause of plaintiff's emotional distress. Plaintiff stands on her privacy objections raised during the deposition.

SCCCD contends plaintiff has opened the door into discovery regarding alternate causes of her emotional distress by seeking damages for emotional injuries in this action. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840.) However, the questions at issue bear no obvious connection to plaintiff's emotional distress. "[A]n implicit waiver of a party's constitutional rights [to privacy] encompasses only discovery directly relevant to the plaintiff's claim and essential to fair resolution of the lawsuit." (*Id.* at p. 842, citation omitted.) Defendant has provided no evidence beyond speculation that an alleged intimate relationship with a non-party was a cause of the same emotional distress plaintiff alleges in this action.

As the questions bear no direct relevance to plaintiff's claims of discrimination and hostile workplace based on gender, age, and race or her related claims of retaliation,

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK **on** 08/31/26
(Judge's initials) (Date)